

Tentative Rulings for August 27, 2026 Department 7

**To request oral argument, you must notify Judicial Secretary
Molly Frabotta at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 7 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **161 766 6465**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500397	THE REGENTS OF THE UNIVERSITY OF CALIFORNIA ON BEHALF OF UC IRVINE MEDICAL CENTER vs COUNTY OF RIVERSIDE	MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES, SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2500397	THE REGENTS OF THE UNIVERSITY OF CALIFORNIA ON BEHALF OF UC IRVINE MEDICAL CENTER vs COUNTY OF RIVERSIDE	MOTION TO COMPEL

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CVRI2500397	THE REGENTS OF THE UNIVERSITY OF CALIFORNIA ON BEHALF OF UC IRVINE MEDICAL CENTER vs COUNTY OF RIVERSIDE	MOTION TO COMPEL

Tentative Ruling: Plaintiff's Motion to Compel are denied as untimely.

Plaintiff's Motions to compel were filed and served on August 5, 2026. CCP §2024.020 (a) provides "[e]xcept as otherwise provided in this chapter, any party shall be entitled as a matter of right to complete discovery proceedings on or before the 30th day, and to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action." Trial is set for September 11, 2026. The 15th day before trial is August 27, 2026.

However, CCP §1005(b) provides "[u]nless otherwise ordered or specifically provided by law, all moving and supporting papers shall be served and filed at least 16 court days before the hearing. The moving and supporting papers served shall be a copy of the papers filed or to be filed with the court. However, if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California... if the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 16-day period of notice before the hearing shall be increased by two calendar days. Here, the motion was served by "email service" or electronic service. 16 court days, plus the 2 calendar days requires that the motion be served by August 3, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500499	DOE vs KAIZEN COLLISION CENTERS, INC.	MOTION FOR LEAVE TO AMEND THE COMPLAINT

Tentative Ruling: Plaintiffs Christian Doe, Brian Doe, and Daniel Doe's (Plaintiffs) Motion for Leave to File a Second Amended Complaint ("SAC") is granted. Plaintiffs must file its separate amendment within 10 days of this ruling.

Individual Defendants' Joinder in the Opposition is denied.

Under California Code of Civil Procedure sections 473(a)(1) and 576, trial courts possess broad discretion to permit a party to amend any pleading at any stage of the proceedings "in furtherance of justice". California courts have established a strong "policy of great liberality in permitting amendments," meaning that a denial of a motion for leave to amend is rarely justified (*Rocky Mountain Export Co. v. Colquitt* (1960) 179 Cal.App.2d 204, 207; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530).

If a motion to amend is timely made and does not prejudice the opposing party, it is an abuse of discretion to deny leave to amend, especially where the refusal deprives a party of the right to assert a meritorious cause of action (*Morgan v. Superior Court*, 172 Cal.App.2d at p. 530; *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048). In exercising its discretion, the Court generally does not evaluate the substantive merits of the proposed amendments, as the "preferable practice" is to permit the amendment and let the parties test its legal sufficiency afterward via a demurrer, motion for judgment on the pleadings, or other appropriate proceeding (*Kittredge Sports Co. v. Superior Court*, 213 Cal.App.3d at p. 1048).

Plaintiffs have fully complied with the procedural requirements of California Rules of Court, Rule 3.1324(b). In support of the motion, Plaintiffs' counsel, Andrew S. Levine, submitted a detailed declaration addressing the effect and necessity of the amendments, the discovery of new facts, and the reasons for the timing of this request.

Effect of the Proposed Amendments:

As set forth in the Declaration of Andrew S. Levine and the proposed SAC, the amendments have the following specific effects:

1. Addition of a New Plaintiff: The proposed SAC adds Raul Doe as a fourth plaintiff.
2. Raul Doe's Claims: The SAC asserts existing causes of action for Sexual Harassment (under Government Code section 12923) and Sexual Battery (under Civil Code section 1708.5) on Raul Doe's behalf, arising out of alleged unwanted sexualized physical contact by Defendant Brian Perez during Raul's employment at Kaizen.
3. Three New Causes of Action: The proposed SAC adds three related causes of action arising from the same general workplace environment and course of conduct:

- Intentional Infliction of Emotional Distress (IIED): Asserted on behalf of all four Plaintiffs against all Defendants.
 - Negligent Hiring, Retention, Supervision, and Training: Asserted on behalf of all four Plaintiffs against Defendant Kaizen and the Doe Defendants.
 - Wrongful Termination based on Constructive Discharge: Asserted on behalf of Brian Doe and Raul Doe against Defendant Kaizen and the Doe Defendants.
4. Correction of Statutory Citation: The amendment corrects the statutory citation for the existing sexual battery cause of action from Government Code section 12923 to Civil Code section 1708.5.

No existing defendants are added or dismissed, and no existing claims are withdrawn.

Necessity and Propriety of the Amendments:

Counsel's declaration establishes that these amendments are necessary and proper because Raul Doe's claims and the three new causes of action arise out of the same employment relationship, the same workplace, the same alleged harasser (Perez), and the same pattern of workplace misconduct. Specifically, the claims involve a series of related incidents where Perez allegedly made sexually charged comments and engaged in unwanted physical contact with male detailers and paint department employees.

Permitting these amendments in a single action serves the interests of judicial economy and avoids the substantial duplication of pleadings, depositions, expert witnesses, and trial testimony that would result from a separate lawsuit by Raul Doe (*Morgan v. Superior Court*, 172 Cal.App.2d at p. 527).

Timing and Discovery of New Facts

According to the Declaration of Andrew S. Levine, the facts prompting this amendment were developed during ongoing investigation and discovery after the First Amended Complaint was filed on July 21, 2025.

- On or about October 31, 2025, counsel obtained a video capturing Defendant Perez physically touching Raul Doe in an inappropriate manner at the workplace.
- Counsel promptly shared this video with opposing counsel on the same day.
- Thereafter, counsel was required to investigate the incident further, communicate with Raul, evaluate his potential claims, and confirm his willingness to participate in this action.
- Raul Doe then timely filed an administrative complaint with the California Civil Rights Department (CCRD) and received a Right-to-Sue notice dated January 8, 2026.

Reasons the Request Was Not Made Earlier

Counsel maintains that they acted diligently and did not delay unreasonably. Immediately after securing the Right-to-Sue notice, counsel initiated the meet-and-confer process. On January 16, 2026, counsel emailed Defendants' attorneys requesting a stipulation to file the SAC. Extensive email correspondence ensued between January and February 2026, wherein Defendants' counsel (Kalli Sarkin and Elizabeth Martin of O'Hagan Meyer LLP) requested a redlined draft.

Plaintiffs' counsel responded on February 11, 2026, requesting an indication of whether Defendants would resist the addition of Raul before spending extensive hours drafting. After it became clear that a stipulation could not be reached, Plaintiffs filed this formal motion to ensure all closely related claims could be heard together.

Lack Of Prejudice To Defendants

Defendant Kaizen opposes the motion, claiming that they will suffer substantial prejudice because discovery is substantially complete, the existing Plaintiffs' depositions have been taken, and trial is scheduled for March 12, 2027. The Individual Defendants joined in these arguments.

The Court finds that prejudice to Defendants is entirely lacking, particularly given the current posture of this case:

1. Substantial Time Before Trial: This motion is heard in August 2026, and the trial is not scheduled until March 12, 2027. With more than seven months remaining before trial, there is ample time to conduct targeted discovery regarding the new claims and Raul Doe.
2. Prior Notice of Raul Doe's Claims: Defendants cannot claim surprise or "eve of trial" ambush (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 487-488). Defendants have possessed or been aware of the video involving Raul Doe since October 31, 2025. Additionally, the operative First Amended Complaint already alleged that Perez repeatedly subjected male employees to unwanted touching. Raul's claims simply reinforce this existing theory.
3. The Addition of Preparation Costs and Legal Theories is Not Legal Prejudice: Under California law, the fact that an amendment involves a change in legal theory, or will cause a more favorable result for the plaintiff, or adds preparation expenses does not constitute prejudice (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490). "Evidence of disputed facts is not prejudice".
4. Opportunity for Discovery and Pleading Challenges: Defendants retain a full and fair opportunity to test the legal sufficiency of the new claims via a demurrer or motion for judgment on the pleadings (*Kittredge Sports Co. v. Superior Court*, 213 Cal.App.3d at p. 1048). Any argument by Defendants that Raul's wrongful termination or negligent hiring claims are "futile" because they are time-barred is premature and better addressed through responsive pleadings.
5. Reopening of Discovery: To ensure absolute fairness, the Court will permit Defendants to conduct targeted discovery regarding Raul Doe and the new causes

of action, including taking Raul's deposition and re-deposing the existing Plaintiffs, if necessary, on the new claims.

Denial Of The Individual Defendants' Joinder Motion

The Individual Defendants, Brian Perez and Michael Vu, filed a Joinder in Defendant Kaizen's Opposition on August 14, 2026, requesting that the Court deny Plaintiffs' motion for leave to amend. They argue that they are similarly situated to Kaizen, that Plaintiffs lacked diligence, and that their counsel was unavailable the week of August 24, 2026.

The Court DENIES/OVERRULES the Individual Defendants' Joinder to the extent they seek to block the filing of the SAC. As discussed above, California's liberal amendment policy strongly favors resolving cases on their merits, and there is no showing of "real prejudice" to any Defendant.

The fact that Individual Defendants' counsel had a scheduling conflict during the week of the hearing does not outweigh the strong policy in favor of amendment. The Court will ensure that the Individual Defendants are afforded a full opportunity to conduct discovery and file responsive pleadings.

1. Plaintiffs shall separately file and serve the proposed Second Amended Complaint in the form submitted as Exhibit A to the Levine Declaration within ten (10) calendar days of service of this Order.
2. Defendants shall file and serve responsive pleadings within thirty (30) days of service of the Second Amended Complaint.
3. The parties shall meet and confer regarding a schedule to conduct targeted discovery regarding Raul Doe and the new causes of action.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505971	GUTIERREZ vs GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling: Plaintiff's Motion for Attorney's Fees is granted in the amount of \$18,205.00.

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, the parties apparently settled with the court to decide fees.

The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed.

[Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

According to counsel's records, Bryan Geoulla billed at \$450 for 29.1 hours, anticipates billing 2.8 hours, and Michael Josephson billed at \$350 hours for 25.1 hours. The hourly rates are reasonable.

At issue is the time spent. The court finds the following excessive and/or unreasonable:

- 9/27/25-9/28/25: Time spent on retaining the client is a cost of business. The court reduces the amount by .6 hours.
- 9/30/25-10/8/25: Time spent on reviewing documents and researching is excessive. The court reduces the amount by 2.0 hours.
- 10/9/25: Time spent on the summons, civil case over sheet, certificate of counsel, and filing instructions are clerical in nature. The court removes the 1.0 hour spent.
- 11/17/25, 12/3/25, 6/12/26: Reviewing emails from the process server is clerical. The court removes the .4 hour spent.
- 12/6/25: Time reviewing the answer is reduced by .2 hours as it is GM's form answer.
- 3/6/26: Scheduling the depo of Plaintiff is clerical work. The court removes the .6 hours.
- 3/12/26-3/13/26: Spending 3.3 hours on preparing for Plaintiff's deposition which was 1 hour is excessive. The court reduces the amount by 1.5 hours.
- 4/3/26-4/5/26: Spending 7.8 hours to prepare for Defendant's PMK deposition, which lasted 2.6 hours is excessive. The court reduces the amount by 3.0 hours.

Thus, the court awards Geoulla 24.9 at \$450 and Josephson 20.0 at \$350, for a total of \$18,205.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2507004	IBARRA vs MARTINEZ	MOTION TO SET ASIDE DEFAULT, AND MOTION TO QUASH SERVICE OF SUMMONS

Tentative Ruling: Defendants Michael Martinez ("Martinez") and 27th Group Design & Develop LLC ("27th Group") Motion to Quash is granted; the entry of default is set aside.

Order to show cause is set for 10/27/26, as to why sanctions not to exceed \$1,500.00 or dismissal should not be imposed for Failure to timely file proof of service ALL defendants on complaint pursuant to CRC 3.110(b & f) as to PLAINTIFF AND RUSSELL RAD.

Quash Service Of Summons (C.C.P. § 418.10)

Under California Code of Civil Procedure § 418.10(a)(1), a defendant may file a motion to quash service of summons on the ground of lack of jurisdiction of the court over him or her. Compliance with the statutory procedures for service of process is essential to establish personal jurisdiction. (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371) In the absence of valid service of summons, the court never acquires jurisdiction over the defendant, and any subsequent order or default entered is a nullity. C.C.P § 418.10(a).

A defendant is under no duty to respond in any way to a defectively served summons. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 392). Furthermore, a defendant's actual knowledge of the action does not dispense with the statutory requirements for service of summons and is not alone sufficient to confer jurisdiction.

To be valid, a summons must be officially issued by the Court Clerk before it can be served (Code of Civil Procedure Section 418.10(a)(1) and *Kremerman v. White* (2021) 71 Cal.App.5th 358, 371). Here, the process server claims he personally served Michael Martinez on December 19, 2025 (Exhibit 1 to the Declaration of John Molina, Esq.), yet the Summons was not issued by the Clerk until February 13, 2026 (Exhibit 3 to the Declaration of John Molina, Esq.). Service of an unissued summons is a jurisdictional defect that cannot establish personal jurisdiction (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371).

Under California Evidence Code Section 647, a registered process server's return creates a rebuttable presumption of proper service (pursuant to Evidence Code Section 647). However, a defendant's sworn declaration of non-service, if credited, is sufficient to rebut the presumption (*Fernandes v. Singh* (2017) 16 Cal.App.5th 932, 940, n. 6).

Even if the Summons had been issued, the Court finds that Defendants have successfully rebutted the presumption of proper service established under California Evidence Code Section 647. Plaintiff relies on the return of registered process server Grigor Melkonyan, acting on behalf of ABC Legal Services, LLC, which asserts that personal service was made on Martinez on December 19, 2025, at 409 East 224th Street, Carson, CA. Under

California Evidence Code Section 647, this return is entitled to a rebuttable presumption of validity.

Defendant Michael Martinez has established that: (1) he has never resided at or had any connection with the 409 East 224th St., Carson, CA 90745 address where service occurred (Declaration of Michael Martinez, Paragraph 5), and (2) his physical description does not match the description in the Proof of Service (Declaration of Michael Martinez, Paragraph 6). The process server described a white male, 45-55, 5'6"-5'8", 180-200 lbs., with an accent (Exhibit 1 to the Declaration of John Molina, Esq.). Martinez is actually a Hispanic male, brown skin, dark black hair, younger, over 250 lbs., much taller than 5'8", with no accent (Declaration of Michael Martinez, Paragraph 6).

This severe physical discrepancy and total lack of residential connection successfully rebuts the presumption of proper service. Because the burden shifted to Plaintiff to prove valid service, and Plaintiff failed to provide additional corroborating evidence of personal service, personal jurisdiction was never established (*Lebel v. Mai* (2012) 210 Cal.App.4th 1154, 1160).

Plaintiff attempted service on the limited liability company solely by serving Michael Martinez as its managing member (Exhibit 2 to the Declaration of John Molina, Esq.). Because service on Michael Martinez failed, service on the LLC also fails. Moreover, Martinez declares that 27th Group was "not in existence at the time of the purported service" on December 19, 2025, and therefore could not have been served (Declaration of Michael Martinez, Paragraph 4).

Plaintiff argues that 27th Group is suspended by the California Franchise Tax Board, lacks capacity to defend this action, and cannot bring the instant motion. While it is true that under California Revenue and Taxation Code Sections 23301 and 23301.5, a suspended LLC lacks capacity to prosecute or defend a civil action (*Timberline, Inc. v. Jaisinghani* (1997) 54 Cal.App.4th 1361, 1366), this rule does not apply to a challenge to the court's personal jurisdiction Under C.C.P., § 418.10(a). Personal jurisdiction is a fundamental constitutional requirement (*Calvert v. Al Binali* (2018) 29 Cal.App.5th 954, 960-961). A court cannot exercise power over an entity that was never served with process, and the court has an independent due process obligation to set aside a void default entered against an unserved party (*Calvert v. Al Binali* (2018) 29 Cal.App.5th 954, 960-961).

C.C.P. § 473(B)

Under California Code of Civil Procedure Section 473(b), a court may relieve a party from a default taken against them through their "mistake, inadvertence, surprise, or excusable neglect" (pursuant to C.C.P. Section 473(b)).

Defendants were never served with the Summons and Complaint, nor were they served with the Request for Entry of Default, which was mailed to the incorrect Carson address (Declaration of Michael Martinez, Paragraphs 4, 5, and 8). They first learned of the default on May 22, 2026, when their counsel received a notice of rejection from the Court (Declaration of Michael Martinez, Paragraph 8; Declaration of John Molina, Esq.,

Paragraph 6). This complete lack of notice constitutes "surprise" under C.C.P. Section 473(b).

Defendants' counsel acted immediately on May 22, 2026, by emailing Plaintiff's counsel to request a voluntary set-aside of the default (Exhibit 5 to the Declaration of John Molina, Esq.). Defendants executed their motion on May 28, 2026 and filed it on June 26, 2026. This is well within the six-month statutory deadline and constitutes a "reasonable time" pursuant to C.C.P. Section 473(b) and *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234.

California favors trials on the merits, and doubts must be resolved in favor of granting relief (pursuant to *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134). Where a party in default moves promptly for relief and no prejudice to the opposing party will result, only "very slight evidence" is required to justify setting aside the default (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233).

Because Plaintiff's sole basis for claiming personal jurisdiction over 27th Group was the purported personal service on Michael Martinez, the quashing of service on Martinez in his individual and representative capacity completely eviscerates the court's jurisdiction over 27th Group. The Court cannot allow a void default to stand against an unserved entity where the jurisdictional defect is clear from the record (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 370-371). Thus, the default is set aside as to both Defendants.

C.C.P. § 473.5 (Lack Of Actual Notice)

Under California Code of Civil Procedure Section 473.5(a), when service of process does not result in actual notice to a party in time to defend the action, the court may set aside the default if the lack of notice was not caused by avoidance of service or inexcusable neglect (C.C.P. Section 473.5(a) and (b)).

Defendant Michael Martinez's declaration establishes that the purported service did not result in actual notice of the lawsuit in time to defend and that his lack of notice was not due to avoidance of service or neglect (Declaration of Michael Martinez, Paragraphs 4-5 and 7-8).

The motion was filed on June 26, 2026, which is well within the statutory limit of 180 days from any written notice of default or entry of judgment (C.C.P. Section 473.5(a)) and is supported by a copy of the proposed responsive pleading as required (C.C.P. Section 473.5(b)).

Plaintiff's argument that a fifty-six day delay was a mere "technical sequencing" resulting from "court administrative delay" is legally erroneous. Service of process must strictly comply with statutory procedures to establish personal jurisdiction (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 371). A plaintiff cannot deliver an unissued document and "retroactively" validate service when the clerk eventually issues the summons months later. Accordingly, the purported service of December 19, 2025, was void.

Plaintiff argues that Defendants' counsel, John Molina, Esq., had actual knowledge of the lawsuit since May 2026, and that Defendants' refusal to accept service is a delay tactic.

However, a defendant is under no duty to respond to a defectively served summons (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 392. It makes no difference that a defendant has actual knowledge of the action "actual knowledge of the action does not dispense with statutory requirements for service of summons and is not alone sufficient to confer jurisdiction" (*Id.*).

Equitable Relief (Extrinsic Mistake)

A trial court has inherent equitable power to set aside a default on the ground of extrinsic mistake where the moving party demonstrates: (1) a meritorious defense, (2) a satisfactory excuse for not defending, and (3) diligence in seeking relief (pursuant to *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982).

The lack of service and the erroneous filing of a Proof of Service at an address with which Martinez has no connection constitute an "extrinsic mistake" that deprived Defendants of an opportunity to present their defense (*County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1228-1229).

Defendants have demonstrated a meritorious defense to the contract claims a satisfactory excuse (lack of notice) (Declaration of Michael Martinez, Paragraphs 4 and 8), and exceptional diligence in filing this motion once the default was discovered in May 2026 (Declaration of John Molina, Esq., Paragraphs 5-7).